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Governmentality and Environmental Rights: Regulatory Failure and the Volkswagen Emissions Fraud Case

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Abstract

With the widespread recognition of anthropogenic climate change resulting, in part, from an overreliance on fossil fuels, the reduction in greenhouse gas emissions has become a central problem of government in most Western states. At the level of the individual citizen, the micromanagement of conduct has been established through complex procedures aimed at the rational administration of environmental regulation that intersects with techniques for the administration of ourselves. That is, such an ethopolitics (see Rose 2001) locates questions of government at the level of individual environmental rights, everyday morality, and the ethics of “going green,” as well as at the level of administration, through regulations aimed at reducing car emissions. Concomitantly, the “conduct of conduct” is aimed at corporate citizens that is administered at the level of emission regulatory regimes, as well as through an ethopolitical imaginary of corporate environmental rights and citizenship that is based on, *inter alia*, fostering environmentally-friendly corporate identities. Drawing on a governmentality analytic, green criminology, and the automobility literatures, we examine how emissions are governed in relation to automobile users and producers. Using the Volkswagen diesel emissions fraud case (also known as “Dieselgate” and “Emissionsgate”), which began in September 2015, as an entry point, this article examines the failure of the Canadian government to monitor and adequately punish emissions violators. This failure takes place against the backdrop of a parliamentary committee proposal to enshrine the right to a healthy environment in Canadian law. Therefore, the article also evaluates the extent to which environmental rights as human rights can refigure existing approaches to environmental violence and challenge the individualization of environmental responsibility and citizenship under neoliberal forms of government.

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Introduction

The United States (US) and Canada began regulating passenger vehicle emissions in the early 1970s. It was not long before companies were caught violating the regulations. Volkswagen (VW) was one of the first; it had installed a “defeat device” that would turn off emissions controls under specified conditions. VW was fined US\$120,000 in 1973 as a result (Hakim et al. 2015). Approximately forty years later, the company once again installed a “defeat device” to circumvent emissions controls—this time on 11 million diesel engine cars sold globally. The US Federal Trade Commission proclaimed that the case involved “unprecedented deception” (cited in Ben-Shahar and Porat 2018: 1943). It has been identified as one of the worst (of many) corporate crime cases to emerge from the automotive industry, and as rivaling even the most notorious cases of more general corporate malfeasance, including the Enron scandal (in 2001) and the BP oil spill (in 2010) (Jung et al. 2017; Spencer and Fitzgerald 2013). The immense scope of the case and the deliberateness of VW’s actions earned it the “Dieselgate” moniker.¹

The fraud became public in September 2015 and the damage caused by VW’s actions soon became clear. VW was not the only one to suffer financially. To be sure, the short-term self-inflicted wound was significant: VW’s stock lost 22% of its value in one day on the Frankfurt Stock Exchange (Siano et al. 2017).² Yet, broader financial impacts were felt in Germany, where the company was headquartered, and in other locations that had provided VW with significant financial incentives to locate there (Jung et al. 2017). Other companies were also impacted; it has been estimated that the case and resultant decline in demand for diesel cars cost other automotive companies in the diesel market and companies that were part of VW’s supply chain US\$6.44 billion (Nunes and Park 2016).

Importantly, VW’s actions cost human lives. In the US, estimates place the death toll of the illegal emissions at 46–59 premature deaths and social costs (e.g., impact on GDP) at US\$430–450 million by the time the fraud was uncovered (Barrett et al. 2015; Holland et al. 2016). Barrett and colleagues (2015) further estimated that if all of the impacted VW cars were taken off the roads by the end of 2016, approximately 130 additional premature deaths and US\$840 million in additional social costs would be avoided. Instead, the recall process unfolded through 2018. Other national estimates have been conducted, including in the United Kingdom (Brand 2016) and the Republic of Ireland (Dey et al. 2018).

The most comprehensive analysis to date assessed impacts across the US and Europe (where 9 million of the 11 million cars were sold) under two scenarios—that the cars would all be taken off the road by the end of 2016 or that they remain on the road for the rest of their estimated lives. Modeling the former scenario, the researchers estimated an impact of 45,000 disability-adjusted life years and premature loss of life costs of US\$39

¹ Although our focus here is on the “Dieselgate” case, it should be noted that VW is not the only automotive company believed to have intentionally exceeded emissions regulations with their diesel engines (see Archer 2016).

² The absolute long-term financial impact on VW is, as of yet, unclear. Two recent developments are worth noting, however: (1) In the wake of the case, VW became the world’s largest automobile manufacturer (BBC 2017); and (2) VW has moved decisively into the electric vehicle market, as evidenced by over 10,000 pre-production orders of its new electric vehicle within twenty-four hours of its unveiling in May 2019 (CNBC 2019). Whether or not VW is genuinely interested in taking a leadership role in “greening” the automotive industry remains to be seen, as does the willingness of defrauded individuals to buy into VW’s next generation of vehicles (Auffhammer 2019).

billion. Under the latter scenario, there would be an additional 119,000 disability-adjusted life years and US\$102 billion costs associated with loss of life (Oldenkamp et al. 2016).³

The scope of the case, the evidence of deliberate fraud, and the synchronized emissions regulations between Canada and the US provide a unique opportunity to examine regulatory responses to a significant case of what Lynch and colleagues (2015) refer to as *corporate environmental violence*. The fact that the case is unfolding against the backdrop of a parliamentary committee proposal to enshrine the right to a healthy environment in the Canadian Environmental Protection Act also provides an opportunity to reflect on the applied impacts of environmental rights on environmental well-being, as moderated by regulatory enforcement and prosecution. We rely on a governmentality analytic to assist with understanding the limits of rights—in this case, environmental rights and the failure of governments to enforce regulations and prosecute corporate offenders. This article is aimed at addressing four overarching research questions: (1) What lessons can be gleaned from the VW diesel emissions fraud case in attempting to better understand emissions regulations and prosecution of corporate offenders in Canada vis-à-vis governance and failures of government? (2) What can the VW case tell us about the nexus between attempts to govern corporate environmental conduct at a distance and ethopolitical self-government in relation to the environment? (3) What can VW's flouting of emissions regulations teach us about corporate resistance to government control? (4) In the light of what has transpired to date in the VW case, would enshrining the substantive right to a healthy environment in the Canadian Environment Protection Act, as proposed recently by the Canadian House of Commons Environment Committee, likely have a substantive impact on the enforcement of emissions regulations in Canada?

We begin by reviewing the green criminology literature most relevant to our purposes here (i.e., scholarship addressing pollution, corporate malfeasance vis-à-vis the environment, environmental law/regulations, and enforcement). Next, we trace the ways in which the governmentality literature can assist with contextualizing corporate malfeasance and the failures of regulatory enforcement, followed by a primer on automobility, emissions, and the VW "Dieselgate" case. This is followed by an analysis of the regulatory responses and the extent to which environmental rights did, or could, figure into this case. Our focus in this article is not on the development of emissions regulations and the limitations thereof, although we do provide an overview of those regulations to provide sufficient background; instead, we are concerned with the governmental attempts to govern the emissions of VW at a distance, the failures of enforcement and punishment, corporate ethopolitical greenwashing, and resistance to environmental regulations. We conclude our article by articulating the broader lessons to be gleaned from this case vis-à-vis both green criminology and governmentality studies.

Green Criminology, Environmental Regulations, and Enforcement

The field of green criminology has, to a large extent, focused on the etiology of harms and crimes perpetrated against the environment, nonhuman animals, and humans via environmental degradation (Brisman 2014). It has also considered substantive issues related to

³ We have been unable to locate estimates of the human health impacts in Canada or on nonhuman species in Canada or elsewhere.

the problematics of environmental law, regulation, and enforcement (e.g., Stretesky et al. 2013). Environmental pollution provides an instructive case of such problematics because it is a particularly pernicious source of environmental degradation and has been subject to uneven enforcement. It has been identified in typologies of environmental harm as a “primary” green crime (South 2014) and as a “brown” issue (White 2008) worthy of focused and sustained (green) criminological attention, particularly on the mass scale perpetrated by corporations (Spencer and Fitzgerald 2013).

Along these lines, Lynch and Stretesky (2001) have examined corporate environmental pollution (specifically, dioxins, pesticides, and toxic waste), arguing that such actions constitute a form of *victimization* instead of a *natural risk* or *natural disaster* and, as such, ought to be of interest to criminologists. Reinforcing the point that corporate emissions are of relevance to the discipline of criminology, Lynch and Barrett (2015) conducted a comparative analysis of the human death toll attributable to coal plant pollution and homicides in the US. They found that the pollution from that industry, alone, is responsible for more deaths than homicides, and they point out that homicides receive much greater attention from the public and from criminologists. They also note that when criminology does pay attention to corporate malfeasance, the tendency has been to focus on financial crimes. Although financial crimes are also worthy of attention, Lynch and Barrett (2015: 221) argue, “that image of corporate crime as primarily a financial crime detracts attention from the ways in which corporate crimes, especially those which damage the environment, are also violent crimes.” Accordingly, they suggest the term *corporate environmental violence* to refer to this type of activity, which we adopt herein.

As criminologists are well aware, the practical impact of laws and regulations depends on enforcement. Yet, enforcement of environmental laws and regulations is another area of concern that has, to date, not received as much attention as is warranted from mainstream criminology and even green criminology (Stretesky et al. 2013). In another examination of the coal industry, Long and colleagues (2012) explored whether political lobbying by individual companies and the degree of embeddedness in the economic system are related to the level of environmental law enforcement to which companies are subject. They found that although lobbying and embeddedness are unrelated to enforcement, corporate donations to political interests on average increase significantly during periods of enforcement activity. Moreover, this growing body of literature indicates that even when environmental regulations are enforced and culminate in punishment, they may not have the desistance effect that is generally assumed. Indeed, in their examination of corporate toxic emissions in the US, Stretesky and colleagues (2013) found that fines imposed on companies do not predict desistance. They did note, however, that very large fines (upward of US\$10 million) may be related to desistance, but such fines are rare (thus making the relationship more difficult to assess).

This article contributes to this literature by examining another instance of corporate environmental violence and resistance to governmental environmental regulations. Utilizing a governmentality analytic,⁴ we analyze the failure of environmental regulatory enforcement vis-à-vis the VW emissions case and evaluate the prospect of preventing and

⁴ Although this analytic underpins this article, we acknowledge that there are approaches and perspectives relevant to the VW fraud case (e.g., state-corporate crime) that could be employed. For instance, Spapens (2018) utilized a state-corporate crime approach to articulate both the factors within and outside of the corporation, particularly its political influence, that likely facilitated and contributed to the perpetuation of VW’s fraud in the context of the European Union.

mitigating the impact of such cases by enshrining environmental rights in Canadian law. In the next section, we offer a brief overview of governmentality and the role of failure in governing practices.

Governmentality of “Persons”

Governmental criminology is influenced by Foucault’s (2003a, b, 2007) scholarship on the emergence of governmentality and the work of social theorists who have expanded this into an analytical framework (e.g., O’Malley 2010). Governmentality is interested in the “strategies of political rule, from the earliest moments of the modern nation state, entailed complex and variable relations between the calculations and actions of those seeking to exercise rule over a territory, a population, a nation and a microphysics of power acting at a capillary level within a multitude of practices of control that proliferate across a territory” (Rose 1999: 17). The governmentalization of the state involves the creation and assemblage of a complex assortment of technologies that work to connect calculations and strategies developed in political centers to “thousands of spatially scattered points where the constitutional, fiscal, organizational and judicial powers of the state connect with endeavors to manage economic life, the health and habits of the population, the civility of the masses and so forth” (Rose 1999: 18).

The point of contestation regarding the governmentalization of the state concerns the scope or boundaries of what exactly falls in its purview and capacity, that is, what is and what is not political, and, what is public and what is private. In the area of urban medicine, for example, medical science became imbricated with chemistry in the eighteenth century, and governmental intervention moved beyond bodies toward the environment, including air and water (Foucault 2003c). As Foucault (2003c: 332) demonstrates, such an approach involves an order of analysis beginning with the environment, to the environment’s effects on the human organism, and finally, the organism itself. In this sense, the environment emerged and is an object of governmental intervention. This is to say that states in the eighteenth century began to broaden what is within their purview, intervening into the lives of its population vis-à-vis the environment.

Governmentality is concerned with the “conduct of conduct”—the art of government involved in the introduction of economy into political practice and the continuous concern with populations and their relations, resources, subsistence and wealth through the inculcation of habits and “ways of acting and thinking” (Foucault 2003a). This involves particular regimes of truth aimed at the government of populations that relates to ways to speak truth, who can speak such truths, and ways of enacting truths. In addition, governmentality involves the invention and assemblage of specific apparatuses for exercising power and intervening on particular problems.

Governmentality, then, is concerned with the *conditions* of possibility for acting upon the conduct of others, or oneself, to achieve certain ends. As Foucault (2003a: 237) explains, “with government it is a question not of imposing law on men but of disposing things: that is, of employing tactics rather than laws, and even of using laws themselves as tactics—to arrange things in such a way, through a certain number of means, such-and-such ends may be achieved.” Governmentality is also concerned with the rationalities of society that chart and constitute various problems, how they are to be classified, what their causes are, what kinds of subjects are involved, and what the ideal outcome of intervention might or would be (O’Malley 2010). It is presumed, as Foucault (1990: 95) notes in his

commentary on method, that government is *predicated* on acting on the conduct of resistant subjects—that is, “resistance is never in a position of exteriority in relation to power.” In terms of governmental criminology, as an *analytic*, governmentality offers a means of framing the ongoing struggles around the formation and implementation of political programs toward crime and criminal justice; such struggles should be understood against the backdrop of resistant subjects that potentially flout legal and regulatory attempts to control them.

The social sciences, in general, and criminology, in particular, are preoccupied with successful social action without much consideration of the failure of actions (Jenkins 2009; Malpas and Wickham 1995). This is to say that they are interested in social actions successfully carried out, without much consideration of unsuccessful, failed social actions. In as much as governmentality is concerned with the rationalities and strategies that aim to address putative problems, such an analytic points to an equally important aspect of government: failure. The frequent emphasis on the *successes* of government overlooks a salient element of all forms of governance: the *failures* of governmental strategies (see Higgins 2004; Spencer 2009). Whereas governmental programs are intended to deploy a number of strategies and tactics to prescribed ends, they face a wide variety of different forms of resistance within the strategic field of power relations (Foucault 1990: 96). These different forms of resistance can result in a failure to govern fully a given field. What is important about recognizing the failure of government (or failures in government) is that in the failure to govern and stabilize potential (resistant) objects of government, openings for competing, alternative government strategies can emerge. One such area where failures of government are particularly evident is in the regulation of corporate conduct.

Contemporary governmentality and problems of crime are not only concerned with humans in the traditional sense of the term, but also other “persons,” such as corporations. In the last forty years, the corporate rights-bearing citizen has materialized alongside the state as an important node in a complex network of governing agencies—and that governance is exercised by multiple agents (Spencer 2009). This emergence of the corporate citizen, and its relative position within governance networks, has made it increasingly difficult for states to render corporations accountable to manifold forms of regulation and sanctions when they commit crimes.

Foucault (2003b: 207) observed the appearance of a specific form of governmentality—that of American neoliberalism—which “seeks rather to extend the rationality of the market, the schemes of analysis it proposes, and the decision-making criteria it suggests to areas that are not exclusively or not primarily economic,” such as environmental regulation and corporate wrongdoing. Markets now serve as one of the primary mechanisms to govern corporate conduct along with formal state laws and regulations. Such an approach to government coincides with neoliberal concerns with not governing and/or intervening too much in market operations (see Foucault 2003a). Within the contemporary neoliberal context, governments are faced with the challenge of *governing at a distance*, relying on technologies to create “locales, entities and persons able to operate a regulated autonomy” (Rose and Miller 2010: 271).

It is in this context that corporations have taken on various types of corporate social responsibility schemes that, *inter alia*, bolster their public image and situate themselves in the broader markets and communities to which they reside (Siltaoja et al. 2015). As a form of ethopolitics (Rose 2010), corporations are able and willing to regulate their own environmental conduct, and self-regulation is manifested in collaborative efforts that ostensibly foster individual, community, environmental, and societal well-being (Spencer and Fitzgerald 2013). Within this ethopolitical imaginary, such self-regulation can manifest itself as

greenwashing, where a firm advertises its environmentally-friendly behaviors or practices, albeit with various levels of actual commitment to reducing their impact on the environment and community.

One such set of firms that have engaged in greenwashing and forms of self-regulation as corporate social responsibility has been the automotive industry. While firms face considerable regulation in terms of emissions and overall safety, industry carmakers have turned environmental consciousness into an advertising tool (Shukor et al. 2017). Such an environmental-response landscape is particularly apposite for a governmentality analytic as it opens lines of analysis into the conduct of conduct of corporations but also vis-à-vis ethopolitics and the ways in which carmakers project an environmental face on their brand to customers (see Deleuze and Guattari 1987). We are concerned, here, with the interactions between the face of the automotive brand—in this case VW—and (failing) attempts by governments to regulate the emissions of this carmaker. In the next section, we consider the context under which the automotive industry operates and its cultural and environmental impact.

Automobility and Emissions

The term “automobility” is a portmanteau derived from “autonomy” and “mobility” in reference to modes of autonomous self-directed movement (Böhm et al. 2006; Featherstone 2004). The existing literature on automobility has examined the combination of humans and machines associated with car use and its specific capacity for autonomous self-directed movement. Automobility dominates all other forms of transportation and is enabled through the externalization of costs of roads and related infrastructures. As such, due to the complex requirements and capacities of automobility, it is often referred to as a “system” (Urry 2004). Concomitantly, the system of automobility is one of coerced flexibility. By expanding where *users* of the system can travel, automobility extends the competencies and the expectations placed on users. In fact, many of our modern forms of sociality could not be undertaken without the flexibilities of the car and its twenty-four-hour availability.

The system of automobility is linked to the disentangling of various life activities that historically were integrated closely. As Urry (2004: 28–29) puts it, automobility “forces people to orchestrate in complex and heterogeneous ways their mobilities and socialities.” The “unbundled” or liquid socialities (Bauman 2000) of work, family life, and consumption, leisure and pleasure activities now have to be reassembled in various complex, contingent, and fragile ways. These assemblages of life now cross very significant distances as the system of automobility orchestrates new places to work and live, as well as new “places to play” (Sheller and Urry 2000, 2003). As a culturally, economically, and politically manufactured system of behaviors, customs, and objects, automobility coalesces with economic discourses and practices of work and production, as well as political discourses and practices of security and regulation. In terms of its environmental impact, automobility demands the building of roads, the procurement of massive levels of gasoline, and emissions of greenhouse gases (GHGs) contributing to air pollution and climate change. In fact, in the US, the emission of GHGs by cars and trucks contributes to one-fifth of the country’s total global warming pollution (Green 2018).

In the last few decades, the automotive industry has, primarily in response to consumer pressure, recognized the need to reduce the emissions resulting from automobility. Concomitantly, automotive firms have been subject to a variety of regulations at the hands of

lawmakers to limit emissions—and for good reasons. The number of deaths worldwide attributable to ambient air pollution is estimated at 4.2 million annually; vehicles are a prime driver of this pollution and, by extension, these deaths (WHO 2019a). This pollution is also connected to planetary well-being, notably in the form of climate change and, as noted above, the very same compounds that contribute to air pollution also contribute to global climate change (WHO 2019b).

In Canada, over 5000 premature deaths each year are attributable to air pollution (Canada Gazette 2001). As a point of reference, there are approximately 650 homicides in Canada per year. The federal Canadian environmental regulatory agency, Environment and Climate Change Canada (ECCC), identifies transportation as “one of the largest sources of air pollution in Canada” and boasts of having “the most stringent national standards in the world for air pollutant emissions from new cars and light trucks” (ECCC 2017).⁵ The goal of these emissions standards is to control the emissions of carbon monoxide (CO), nitrogen oxides (NOx), sulfur oxides (SOx), volatile organic compounds (VOCs), and GHGs, among others (Canada Gazette 2001). Since Canadian emissions standards were first introduced in 1971, the standards and landscape of regulatory authority have changed. Emissions standards originally laid out in the Motor Vehicle Safety Act and regulated by Transport Canada were later transferred to the Canadian Environmental Protection Act (CEPA) and the authority of Environment Canada (subsequently renamed Environment and Climate Change Canada or ECCC, as noted above).

In the past few decades, revisions to the CEPA have shifted its grounding from a command and control approach to one of governing through neoliberal tenets of corporate self-regulation and stakeholder consultations, including having nongovernmental entities set standards (Girard et al. 2010). Nonetheless, the CEPA does contain some procedural environmental rights, including the right of the public to information, the right to be involved in setting standards, the right to pursue civil litigation, the right to request an investigation and be provided with progress reports about the investigation every 90 days, and the right to judicial review of administrative decisions. These rights, however, may function as transferring some responsibility for triggering enforcement on from government to the citizenry. As Girard and colleagues (2010: 225) remark, the CEPA creates a “second layer of pyramidal enforcement, the proregulatory citizen voices which allow government to act as an ‘honest broker’ between citizens and industry.” Even with these rights in place, Girard and colleagues (2010) document a trend of fewer investigations and prosecutions under the CEPA between 1990 and 2008, which took place against the backdrop of cuts to Environment Canada’s budget. As Girard and colleagues (2010: 231) reveal, the House of Commons and Senate reviews of the CEPA have indicated that it

has not been fully implemented; the incomplete National pollution Inventory remains useless for environmental assessment; funding has been ‘woefully inadequate’; and neither accountability nor transparency are guaranteed...The Senate report depicts CEPA 1999 as ‘a work in progress,’ pinpointing two major obstacles: a ‘lack of will’ to enforce the Act, and a lack of resources.

⁵ Fuel consumption standards have also been implemented, and although they clearly have a bearing on the volume of emissions, our focus here is on the enforcement of emissions regulations specifically. As such, a discussion of these standards is beyond the scope of this particular article. For information on Canadian fuel emissions standards, see Environment and Climate Change Canada (2018); see Lynch and White (2012) for a critical political economic analysis of US standards.

In 2000, the Canadian government initiated its agenda on cleaner vehicles, engines, and fuels. Under the CEPA, emission standards for on-road vehicles were aligned with those in the US, including those for diesel engines (Canada Gazette 2001). The new regulations took effect with the 2004 model year. The future of this alignment, however, is in question given that Canada is a party to the Paris Agreement under the United Nations Framework Convention on Climate Change (known as the “Paris Climate Agreement” or “COP21”), whereas in June 2017, President Donald J. Trump announced his intention to withdraw the US from the agreement. The Canadian government has identified passenger vehicle emissions as one area of targeted reduction (ECCC 2018), which would put it out of sync with US regulations. This disjuncture appears even more likely given that the Trump Administration’s Environmental Protection Agency (EPA) has expressed interest in weakening the regulations (which are in effect until 2025 but are currently under review). While the automotive industry has voiced concerns about what this would mean for the integrated North American automotive sector, some environmental organizations have been optimistic regarding the potential of Canada charting its own, more stringent, emissions path (Mertyl 2018). As we demonstrate below, however, the failures of enforcement in the VW case, and the ethopolitics related to “greenwashing” to facilitate sales, provide ample reason to temper that optimism.

Ethopolitics and Marketing the “Environmental Idol”

At the beginning of the twenty-first century, VW publicized its plan to become the world’s largest automotive manufacturing company. The plan was to triple North American sales within a decade, and expanding diesel-engine vehicle sales there was key to doing so (Hakim et al. 2015). As part of their ethopolitical imaginary, VW also reportedly planned to become “the world’s most environmentally compatible automaker” (quoted in Siano et al. 2017: 31). To enact the latter project, VW would need to counter the perception that diesel engines were “dirty.” To that end, VW branded its TDI (turbocharged direct injection) diesel engines in its 2009–2015 models as *clean diesel technology*.⁶

On VW’s Web pages, environmental claims appear alongside descriptions of its 2009–2015 models with the TDI engine as “fun driving” and having “impressive power/torque.” Under the heading “Life in the Smart Lane” on the “TDI Clean Diesel” page of its Web site in 2014, the text reads: “You don’t need to be a rocket scientist to know that diesel is the intelligent choice.... It’s cleaner.” As a mode of ethopolitical framing, VW makes the argument there and elsewhere that the diesel engines in its cars are more fuel efficient than others, claiming in various places that its diesel technology is 45% more efficient than others on the market and up to 30% more efficient than gasoline engines. As late as 2015 (the year the fraud was uncovered), the TDI performance page of its site claimed that the “end result” of its engine technology was “lower fuel consumption, lower emissions, and uncompromised torque.” This represents what is perhaps the trifecta of what most car

⁶ Although its advertising for the engine was halted and online content apparently removed once the fraud became public, we were able to access old archived VW Web sites via the Wayback Machine Internet archive, compiled by a registered nonprofit that began archiving Web sites in 1996. Given the nature of the archive, we cannot claim that we were able to access all VW Web pages relevant to the 2009–2015 TDI models, but we were able to gather ample examples of the ways in which VW “greenwashed” its products, most specifically framing its TDI vehicles as environmentally preferable to vehicles sold by its competitors.

buyers are looking for: less costly fuel consumption, lessened environmental impact, and—despite the aforementioned—impressive power and performance. This form of subjectification places value in the brand and corporation as possessing a morality that values the environment and broader community, and that invites the potential consumer to be part of this moral economy. It conjoins morality with performance to seduce the consumer.

These claims are expanded on the “think blue” page of its Web site, which contained the following:

we believe you shouldn't have to sacrifice fun to be responsible. That's why we created the Think Blue initiative. It's a philosophy for driving progress forward by making cars that are more efficient and eco-conscious, but still ridiculously fun to drive. It's also a commitment to educating people about better, fuel-efficient driving habits as well as leading sustainable projects to help improve our planet. In the end, though, *it's the “fun” part of the equation that is the difference between just being “green” and being “blue”*. From our TDI Clean Diesel to our Turbocharged Hybrid, the Volkswagen line-up features a variety of BlueMotion Technologies designed to make our vehicles as blue as possible. Which is likely to make other car companies look green. With envy. [emphasis added]

In other words, being “green” need not be unenjoyable: VW could provide the consumer with both pleasure and a reduced environmental footprint relative to other vehicles via its TDI engine. Such a politics of behavior operates by marketing to the consumer values that mean that VW cars are meant to be enjoyed responsibly. Such an ethopolitics enables a form of market-driven, neoliberal self-government, while maintaining one's obligations to the environment and others (cf. Rose 1999: 188).

VW's green claims—or blue, according to its marketing—went as far as to refer to the “legendary cleanliness” of its “clean” diesel technology, which “produces 90% less sooty emissions than diesel engines of old.” Potentially wary consumers were further assuaged that the “TDI Clean Diesel is designed to meet every stringent emissions standard—some of the toughest in North America.” VW even proclaimed it “an environmental idol.” Based on what we have been able to locate, it appears that the TDI Clean Diesel page of VW's Web site was taken down in March of 2015. The fraud became public in September of that year.

VW's greenwashing is both significant and relevant to our purposes here for several reasons. Notably, it points to the limitations of ethopolitics and attempts to govern through individual morality and ethical behavior amidst the constraints of doing so imposed by corporations actively involved in framing ethical narratives to suit their own ends. A market touted as allowing consumers to “vote with their wallets” and responsabilizing them for acting as ethical subjects is inherently compromised when corporations can and do use ethical arguments to persuade consumers to purchase their products while violating those exact ethical concerns. Our analysis of VW's advertisements indicates that it was leveraging the ethics of “going green” to induce consumers to purchase its products. In this way, not only did VW perpetrate a fraud against consumers, it made consumers complicit in the very environmental harms that at least some of them had specifically been motivated to avoid. Greenwashing like this also illuminates the limitations inherent in transferring responsibility for invoking individualized environmental rights to citizens who are privy only to snippets of skewed information. In this specific case, it provides evidence in support of the argument that those impacted ought to be entitled to at least basic information during the course of an investigation to, among other things, inform subsequent consumptive behavior. In this case, Canadian consumers had to decide whether or not to keep their

cars and have them repaired, exchange them for other VW products, or have VW buy the vehicle back and use those funds to purchase a replacement vehicle from a different car-maker in a context where they were receiving information from the company but not from their government.

From “Environmental Idol” to Environmental Fraud

VW’s ethopolitical greenwashing practices resulted in market success; by 2014, it had reportedly secured 70% of the market share of new diesel passenger cars (Barrett et al. 2015). Concomitantly, stricter standards in North America were making it more difficult for carmakers to adhere to carbon dioxide (CO₂) and air pollutant limits, specifically NO_x, as there is “a trade-off between NO_x emissions and fuel efficiency (and hence CO₂ emissions): A fast combustion with high temperatures is optimal for maximum fuel efficiency and minimum CO₂ emissions, whereas these conditions give rise to higher NO_x emissions” (Zachariadis 2016: 1; see also Archer 2016). These standards and expectations surpassed what VW engineers could do while simultaneously preserving vehicle performance and its chosen price point, and so the company began to systematically falsify CO₂ emissions testing.

This scheme was derailed, however, when a nonprofit organization (the International Council on Clean Transportation) began looking into diesel engine emissions.⁷ The organization commissioned the West Virginia University Center for Alternative Fuels, Engines and Emissions to conduct an emissions study. The researchers went beyond standard protocol used by regulators, which was to test vehicles in an artificial environment (i.e., on a platform in a laboratory) and conducted on-road emission tests (for a description of the logistical differences in testing methods, see Cruden et al. 2018). The West Virginia University Center for Alternative Fuels, Engines and Emissions documented TDI engine on-road emissions levels upward of thirty-five times the legal limits of NO_x (Thompson et al. 2014).

The California Air Resources Board and the US EPA conducted a follow-up investigation and, when VW was not forthcoming, threatened not to provide certification for the next year’s models. VW finally admitted that it had inserted a “defeat device” in 2009–2015 TDI models that could sense when the car was being tested and, when it was, the car would emit NO_x levels within the legal limits. These controls would then be turned off when the cars were on the road, which would improve performance but would also emit more NO_x (Cruden et al. 2018). On September 18, 2015, the US EPA cited VW for violating the Clean Air Act. By this point, 11 million affected vehicles had been purchased globally.

⁷ Years earlier, researchers with the Joint Research Centre of the European Commission had documented perplexing differences between standardized laboratory and on-road emissions testing of diesel vehicles (Weiss et al. 2011, 2012), pointing to the possible presence of defeat devices. For a critical analysis of regulatory nonresponse in the European context, see Spapens (2018).

A Tale of Two Different Prosecutorial Responses

Before describing what transpired in the Canadian context, it is useful to address what took place in the US, where approximately 580,000 of the cars were sold and which, as noted earlier, shares aligned emissions regulations with Canada. The US government's prosecutorial response has been described as being undertaken with "a swiftness unmatched" (Anderson et al. 2018: 2). In January 2016, the US Department of Justice (DOJ) charged VW with Clean Air Act violations, false advertising, deceptive trade practices, lost profit claims, and Racketeer Influenced and Corrupt Organizations Act (RICO) violations. In that same year, the DOJ settled three consent decrees with VW, which contained admissions of guilt and had laid criminal charges against VW and seven employees. VW pleaded guilty, marking the first time it had ever pleaded guilty to criminal charges (Cruden et al. 2018).

The DOJ secured relief from VW in the amount of US\$20 billion which, to date, is the largest ever secured under their Clean Air Act. Of this, US\$2.7 billion is dedicated specifically to an Environmental Mitigation Trust. It is expected that projects funded through this money will be able to mitigate fully the excess NO_x emissions created by the vehicles in the US. In addition to the US\$16 billion that VW had to pay in restitution to consumers and the environment, the government also levied a US\$1.45 billion civil penalty. Moreover, VW paid over US\$1 billion additional environmental penalties to individual states.

In the criminal case, VW paid a US\$2.8 billion fine as part of a plea agreement and was also sentenced to three years of probation, which included being under the supervision of an independent corporate compliance monitor during that time period. The penalty is one of the highest ever imposed in the US. VW also had to agree to make organizational changes to reduce the likelihood that something like this could happen again, including restructuring and implementing additional testing. Of the VW employees who were charged and sentenced, one received a sentence of forty months in prison, and another a term of seven years (Cruden et al. 2018). This response can be juxtaposed against what has transpired in Canada, where approximately 105,000 cars were sold.

Although ECCC reportedly opened an investigation in 2015, to date, VW has not faced any federal charges or fines in Canada related to the environmental impacts of its fraud. Estimates of the fines that could be levied against VW in Canada vary: Environmental Defence (2018) estimates that if fined—and absent a settlement—VW could face a CA\$105 billion fine. If VW were fined the CA\$6 million maximum possible for large corporations per violation under the CEPA—and if each of the approximately 100,000 vehicles sold in Canada were counted as separate violations—VW could be fined over CA\$600 billion. Although ECCC has said relatively little about the case, its spokesperson has made it clear that it is unlikely VW would be ordered to pay the maximum possible penalty (Adams 2016). The company has already paid a CA\$15 million penalty to the Federal Competition Bureau. A class action lawsuit was also filed and was settled in the amount of CA\$2.1 billion in April 2017 for the 2.0 L engines and an additional CA\$229 million for the 3.0 L engines in April 2018—the largest payout by a company in Canadian history (CBC News 2016). Absent federal intervention, in 2017, VW began selling its 2015 models that had the defeat device removed, but before hardware changes had been made—a so-called half-fix. They were able to do so in the US, as well, but only after the penalties had been imposed (Bruser and McLean 2017).

Frustrated by the seeming lack of enforcement, in June 2017, two Canadian environmental groups—Environmental Defence and Canadian Physicians for the Environment—submitted a formal request with ECCC to investigate VW for violations of the CEPA,

as is the groups' right under the CEPA. According to Environmental Defence, ECCC's response was that an investigation had, indeed, already been initiated. In such a case, if requested, ECCC is supposed to provide progress reports every 90 days; environmental group requests these progress reports but were denied, "which arguably contravenes citizen rights under CEPA" (Environmental Defence 2018). Subsequently, the groups requested a judicial review of ECCC's unwillingness to provide investigation progress reports and, in 2018, the Federal Court ruled in favor of ECCC. At the time of this writing, the state of the investigation is still unknown. The province of Ontario, however, did execute a search warrant on VW Canada's offices in 2017, and the provincial environmental ministry charged VW with one count under the provincial Environmental Protection Act. Although the action was welcomed by environmental groups, they were quick to point out that ECCC has more power and could impose more significant fines than the provincial ministry could (Healing 2017).

From a governmentality perspective, such criminal justice and market-based responses reflect the ongoing struggles of contemporary states to develop and implement regulations that manage forms of environmental violence and crimes committed by corporations. Such political programs oriented to regulating corporate environmental violence have to be set against the neoliberal emphasis on governing through freedom, so as to continue to encourage consumption and not restrict markets too much. Whatever the long-term financial implications for VW, such flouting of emissions standards without federal environmental penalty in Canada reflects a failure of government which, as history has shown with the Ford Motor Company and other automobile manufacturers, only precipitates future governmental strategies toward the conduct of conduct of corporations. What this analysis indicates is that struggles for environmental protection are fraught with contradictions, as corporations, through manifold ethopolitical imaginaries, frame themselves as environmentally conscious with various levels of commitment to such initiatives, as well as resistance to governmental environmental regulation and enforcement through a variety of tactics. The question then becomes: can such forms of environmental violence be counteracted by environmental rights as a response to environmental degradation?

Environmental Rights as a Panacea?

This case has unfolded against the backdrop of a proposal to enshrine a substantive right to a healthy environment in the CEPA.⁸ The proposal is one of 87 recommended revisions that were made by the Canadian House of Commons Environment Committee in 2017. The CEPA already contains procedural environmental rights, which, as noted above, include the right of the public to be involved in setting standards, the right to pursue civil litigation, access to information, and the right to judicial review of administrative decisions. The latter three are rights that the environmental nongovernmental organizations (NGOs) attempted to invoke in the VW case.

⁸ Our focus in this article is on environmental rights as articulated in state-level legislation and constitutions. For a more in-depth discussion of types of environmental rights, see Hiskes (2008).

In general, environmental groups have seemed encouraged by the proposal to include substantive environmental rights in the CEPA.⁹ Even if substantive environmental rights are added to the CEPA, they would be limited, legislated rights. Constitutional environmental rights, in contrast, would provide greater protections (see Bruch et al. 2001). Boyd (2013:17) uses a vivid feline analogy to illustrate their relative strength: “constitutional and legislative environmental rights are like lions and housecats—related, but with dramatically different degrees of strength.” The constitutions of approximately 80 countries currently recognize the right to a healthy environment (see, e.g., Boyd 2012; East Coast Environmental Law Association 2014; May and Daly 2015). Canada and the US are not among this group.

Yet, even at the penultimate level of constitutional environmental rights, determining their applied value is still a work in progress (Boyd 2012; Gellers and Jeffords 2015; Jeffords 2016; Jeffords and Minkler 2016). Recent empirical work has pointed to better environmental performance among countries with constitutionalized environmental rights than among those without. Boyd (2012) documents a 0.4% annual average decrease in harmful emission levels among countries with constitutionalized environmental rights compared to a 0.1% annual average increase among countries without. Using the more general Environmental Performance Index (EPI) measure, Jeffords and Minkler (2016) document higher average EPI scores among states with constitutionalized environmental rights compared to those without. The way that most of these provisions have been framed and measured (i.e., through environmental *performance*) is clearly anthropocentric; that is, they are concerned with environmental well-being insofar as it impinges upon *human* interests (see Bruckerhoff 2008; Sheehan 2015; Taylor 1998). As such, the EPI and similar measures represent “the reformulation and expansion of existing human rights and duties in the context of environmental protection” (Shelton 1991: 117). Individual humans are given rights; the *environment*, as a whole, is not in most instances. As such—and in this light—we can see such approaches to environmental rights as fitting within the long-standing orientation of urban medicine, discussed above, and its ultimate orientation toward the environment as it impinges on the health of the population.

Alternatively, there are now cases where rights have, in theory, been constitutionally extended to the environment. Ecuador was the first country to enshrine the Rights of Nature in its constitution and, although lauded, even this level of rights is not above political influence. The legal impact of these rights has been negligible. Governmental enforcement has been problematic, including using of the Rights of Nature to undercut human rights by claiming that a large-scale mining project would benefit conservation efforts by generating revenue. In addition, not one civil lawsuit filed in the interests of protecting nature’s rights has been successful (Valladares and Boelens 2017).

Reliance on civil environmental lawsuits, even in states where the probability of success may be greater, is inadequate—whether dealing with constitutionally protected rights or legislated rights—because civil lawsuits require significant resources that can outstrip the capacity of environmental NGOs, particularly in states where the environmental movement is not well established. Public protections and enforcement would appear preferable. Yet, the neoliberal trend has been to decentralize enforcement of environmental laws and protection of environmental rights, where they do exist.

The European Union (EU) provides an illustrative case. Increasingly, European Commission has been withdrawing from enforcing environmental laws—not in an individual

⁹ Whether or not it will come to fruition is uncertain. The government’s response to the Environment Committee’s recommendation has been that “the Committee did not define what such a right would mean... The Government commits to further study and stakeholder engagement on the implications of these recommendations” (Government of Canada 2018: 33).

investigative sense, but through infringement proceedings against EU member states when national regulations conflict with EU law—and, instead, has been using market-based solutions by “outsourcing” those activities to private entities, particularly environmental NGOs.¹⁰ Analyses undertaken to date indicate that these NGOs are much less likely to secure legal victories than in cases brought forward by the European Commission. This *governing at a distance* of environmental regulation and transferring of responsibilities has also resulted in an inconsistent degree of compliance across member countries (Hofmann 2019).

The problems associated with abdicating this responsibility are evident in the Canadian context vis-à-vis the VW case. The environmental protections embedded in the CEPA, including procedural environmental rights, have not been applied with any success in this case. In response to the denial of their requests for progress reports on the investigation and a legal ruling in ECCC’s favor in this regard, Environmental Defence issued a press release in October 2018, stating in part,

This month marks the passage of three years since VW got caught.... As of today, and unlike proceedings in the U.S., Germany and other countries, zero progress has been reported publicly in Canada on the investigation and no charges have been laid against VW. Canada’s complacency in enforcing environmental laws and holding big polluters such as VW accountable for their actions continues to send a dangerous message that companies can pollute and get away with it... In August 2017 Environmental Defence staff, represented by Ecojustice lawyers, launched a court case against the federal government after it refused to initiate investigations of violations of environmental laws by VW and to disclose progress on these investigations. Since then, government lawyers have chosen to protect VW by fighting the disclosure of investigation documents and have supported levying of court expenses against us for exercising our public participation rights under law.

Thus, not only do environmental groups or individual citizens bear the financial burden of bringing lawsuits to compel the government to enforce its own laws, they may also be held financially responsible for the government’s court costs. The limitations of even procedural environmental rights in Canada vis-à-vis a case where a company that wantonly harmed the environment and human health, settled a civil lawsuit for an amount that makes it the largest corporate settlement in Canadian history, and has admitted guilt in other jurisdictions, point to significant issues that need to be addressed before more substantive environmental rights can be incorporated in any meaningful way.

Conclusion: Can Environmental Rights Compete with Corporate Wrongs in the Context of Governmental Failures of Enforcement?

As demonstrated above, VW’s wanton violation of the harmonized emissions regulations between Canada and the US provides an opportunity to examine divergent regulatory responses and regulatory failure. Given the environmental nature of the case, it also provides occasion to reflect upon the potential of environmental rights to protect against corporate wrongs and regulatory failure—timely, given the House of Commons Environment Committee’s 2017 proposal to add a substantive right to a health environment to the CEPA.

¹⁰ For more general discussion of the nuances of the European Commission’s role in enforcing EU law, see Andersen (2012).

Our analysis of VW marketing materials documents greenwashing aimed at convincing consumers that the TDI (“environmental idol”) engine was the best “green”/“blue” choice. As such, not only is “Dieselgate” a case of corporate environmental violence, but through ethopolitical greenwashing, VW enticed eco-conscious consumers and made them unknowingly complicit. VW was held responsible in Canada for violating “consumer rights”: the Federal Competition Bureau fined them CA\$2.5 million for making “false or misleading environmental marketing claims” (Competition Bureau Canada 2018). Consumers who owned the affected vehicles were compensated individually through a civil lawsuit settlement (the largest against a corporation in Canadian history). Thus, the individual-as-*consumer* received some justice in Canada, but to date, the individual-as-*environmental-citizen* (and the public, more generally) has not. Moreover, there are no indications that ecological justice (where the harm to the natural environment would be redressed) is even on the table. This juxtaposition reflects the anthropocentric privileging of the economic over the environmental. Admittedly, this is unsurprising given how culturally embedded anthropocentrism is; it is surprising, however, that even the environmentally mediated harms to human health have not (yet?) been addressed.

It is possible that VW will eventually face penalties under the CEPA. That will not force a rewriting of this story of regulatory failure, however. It will provide only a concluding chapter. We acknowledge that corporate environmental investigations can be time-consuming and resource-intensive, which could explain why four years later (at the time of this writing) VW has not faced charges under the CEPA. Our response to this possibility is twofold.

First, even if charges are brought against VW tomorrow, the delay relative to timelines in other national jurisdictions (Germany, US) and subnational jurisdictions (notably Ontario, Canada’s largest province) is substantial and problematic in terms of the ability to mitigate environmental damage and have a deterrent effect. Second, the time that ECCC’s investigation has taken is long relative to other large and relatively complicated cases of corporate environmental harms that it has investigated, such as: the Kirby Offshore Marine Operating LLC case, where the company was ordered to pay CA\$2.9 million for violating three federal environmental acts three years after a boat crash resulted in the spilling of harmful substances into the water; the Husky Oil case, where the company was ordered to pay CA\$2.7 million three years after a 2016 pipeline oil leak; and the Prime Realty Holdings Corporation case, where the director was imprisoned on criminal charges and the company fined three years after violating the CEPA’s polychlorinated biphenyls (PCB) regulations (Government of Canada 2019).

Moreover, the delayed prosecution in the VW case has created a situation that illustrates the limitations of even procedural environmental rights. More specifically, the government’s unwillingness to comply with the procedural environmental right to investigation progress reports points to what will also likely be significant limitations if substantive environmental rights are eventually added to the CEPA. In general, environmental rights are being proposed as a response to the governmentality of corporations and the environment. In the context of neoliberal approaches to government, where the market is seen as sacrosanct, *governance at a distance* implies the use of technologies and regulatory entities and persons that operate with relative autonomy. Both regulations and enforcement, as we have seen in the “Dieselgate” case, can and do fail to achieve environmental conformance when firms resist compliance and flout regulations and enforcement measures. Such failures in government environmental regulation, broadly speaking, are perpetuated by neoliberal emphasis on market deregulation and the privatization of the environment (Heynen et al. 2007; Nixon 2009).

As South and Brisman (2013:106) explain, “the current system of control and enforcement actually depends on models of deregulation... and ‘legislative balancing acts’ (agencies charged with encouragement of compliance in the course of doing business are also charged with prosecuting and penalising in cases of offending) that are not fit-for-purpose—if that purpose is supposed to be meaningful.” Consistent with this trend, funding for CEPA enforcement has been cut and the number of investigations decreased (Girard et al. 2010). Even in a context of willingness-to-regulate and prosecute, the legacy of these cuts would no doubt compromise ECCC’s ability to do so in a case of this scope. More cynically, it is possible—as environmental groups have argued—that there is an underlying unwillingness to regulate VW. Spapens (2018) asserts that the reason the fraud was uncovered in the US is that VW had less political influence in that national context than it did in the context of the EU (particularly in Germany), where questions had been raised years prior about excessive diesel emissions. Future research might examine VW’s political influence in Canada, particularly if charges are not eventually laid under the CEPA or if charges are laid but the associated penalties are relatively weak.

The CEPA already contains some procedural environmental rights, and the lawsuit launched in the VW case by environmental NGOs under the CEPA is but one of several lawsuits that have been launched for similar reasons (e.g., failure to investigate the environmental impacts of proposed oil projects). This has prompted Girard and colleagues (2010: 234) to observe that “while legal battles rage, economic and political developments continue to make strict enforcement of CEPA simultaneously more difficult and more necessary than ever before.” Attempts to govern through individuals in the absence of adequate regulatory enforcement will likely produce other failures.

Thus, while some environmental groups are optimistic at the prospect of Canada developing its own emissions regulations to comply with its obligations under the Paris Climate Agreement, and the potential addition of the right to a healthy environment within the CEPA, our analysis suggests that the VW case provides evidence for tempered optimism in the face of what to date can aptly be referred to as regulatory failure. Although Canada tends to be juxtaposed against its US neighbor as being progressive, when it comes to the environment, it is an unworthy characterization, as illustrated by this case. Our analysis instead provides support for Girard and colleagues’ (2010: 220) assertion that “even compared to the United States, another country with an egregious environmental record, Canada lags behind.” Will environmental rights be able to protect against corporate wrongs in Canada? Our analysis indicates that unsuccessful attempts in the context of the VW case to leverage even the modest environmental rights already contained in the CEPA point to ongoing challenges likely to be confronted by individualized responses to governmental failures to react to violations of environmental regulations.

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Compliance with Ethical Standards

Conflict of interest Amy J. Fitzgerald served as the Representative Plaintiff for Volkswagen Beetle owners in the Canadian class action lawsuit against Volkswagen.

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